

Vs. Punjab Public Service Commission, etc.

Through this constitutional petition, the petitioner seeks appointment as Assistant District Public Prosecutor (BS-17) (*“ADPP”*) against disabled quota by setting-aside order dated 30.08.2018 passed by Secretary, Punjab Public Service Commission, whereby his representation was rejected and order dated 12.09.2018 passed by Chairman, Punjab Public Service Commission, Lahore, whereby his appeal filed there-against was dismissed.

2. It has been argued on behalf of the petitioner that 19 seats for disabled quota were advertised by the respondent Department, out of which 16 seats are still lying vacant. Despite the fact that the petitioner has passed the said examination and interview, he has not been allocated any seat.

3. On the other hand, learned A.A.G under instructions states that the petitioner had not applied on the basis of disabled quota, therefore, as per Punjab Public Service Commission Rules, his case could not be considered under the same and the said plea has belatedly been raised by the petitioner.

4. Learned counsel for the petitioner states that the petitioner raised the plea of appointment against disabled quota during psychological test by producing relevant documents, which was not considered. On the other hand, advertisement No. 46/2017 dated 24.08.2017 issued by the Punjab Public Service Commission, Lahore, for the purpose of the afore-referred appointment clearly mentions that candidates must read the instructions carefully before filing their online application form and onus/responsibility of the correctness given in online application form will rest squarely on the candidates. The candidate could amend his application form up till 14th September, 2017. Subsequently vide corrigendum the last date was extended up to 16.11.2017. The online application form submitted by the petitioner has also been placed on the record, wherein in column No. 20 reproduced below, the petitioner has not claimed to be a disabled person despite the fact that he was obliged to declare the same in the form if he was to seek its benefit. Although it is claimed by the petitioner that disability certificate in his favour was issued by the concerned Department on 19.10.2005. The said document was also not placed on the record as is evident from column No. 20(a) to 20 (d) of the application form, that were left blank. The said form was submitted and was available at the time of interview when the petitioner appeared in the interview and no amendment in the said form was made prior to the closing date.

“20. Do you Claim to be a Disabled Person? No

20(a). If Yes, Then Type of Disability:

20(b). If Blind, Then Exam Mode:

20(c) Disability Certificate Ref. No:

20(d). Disability Certificate Issue Date:”

Consequently, it is observed that in the present process for appointment under challenge the petitioner had not asserted his right to be appointed against disabled seat at the relevant time before the last date fixed for the said purpose and he has missed the chance for appointment. Petitioner at this stage cannot be allowed the benefit of appointment on the ground that he had disclosed his disability at the time of interview or psychological test because firstly there is nothing on the record to show that he had raised such plea and secondly, he has failed to establish that such plea could be raised at such belated stage. No ground to interfere in the afore-referred orders passed by the respondents in rejecting his claim is made out. Consequently, this petition being devoid of any merit stands **dismissed in limine**.

(Muzamil Akhtar Shabir)
Judge